

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUBC044939: JARED RYAN MILGRIM vs LARUB KEBAB LLC, et al.

09/11/2026 in Department 21

Motion for Issue, Evidentiary and/or Terminating Sanctions for Defendant Ruben Philip Classen's Willful Failure to Comply With Court's February 23, 2026 and May 4, 2026 Discovery Orders and to Strike his Answer and Dismiss his Cross-Complaint; and Motion for Issue, Evidentiary and/or Terminating Sanctions for Defendant Lars Lackas' Willful Failure to Comply With Court's April 22, 2026 Discovery Order and to Strike his Answer and Dismiss his Cross-Complaint

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Plaintiff Jared Ryan Milgrim's Motion for Issue, Evidentiary and/or Terminating Sanctions for Defendant Ruben Philip Classen's Willful Failure to Comply With Court's February 23, 2026 and May 4, 2026 Discovery Orders and to Strike his Answer and Dismiss his Cross-Complaint; and
- (2) Motion for Issue, Evidentiary and/or Terminating Sanctions for Defendant Lars Lackas' Willful Failure to Comply With Court's April 22, 2026 Discovery Order and to Strike his Answer and Dismiss his Cross-Complaint

Tentative Ruling:

Plaintiff's Motion against Ruben Philip Classen ("Ruben"):

Plaintiff's motion for issue, evidentiary, and/or terminating sanctions against Defendant Ruben Classen ("Ruben") is GRANTED as to issue and evidentiary sanctions and DENIED as to terminating sanctions as follows:

Set One, Request for Production of Documents Numbers 2 and 6:

Defendant Ruben failed to adequately respond to Plaintiff's Set One Request for Production of Documents (Set One RPDs) Nos 2 and 6. Pursuant to the Court's order, Set One RPD No. 2 required Defendant Ruben to produce all communications about Plaintiff that Defendant Ruben sent to law enforcement. Set One RPD No. 6 required Defendant Ruben to produce all communications he had on January 10, 2024 - the day of the alleged trespassing, vehicle following, and near-accident incident – with the person referred to as the Pastor, concerning Plaintiff. The Court order required Defendant Ruben to provide further responses to these RPDs and to provide a privilege log for these RPDs. He has failed to do either.

Accordingly, the following issue and evidentiary sanctions are ordered: (1) Defendant Ruben is barred from providing testimony or documentary evidence regarding the topics or information included in Set One RPD No. 2; (2) Defendant Ruben is barred from providing testimony, witnesses, or documentary evidence regarding the topics or information included in Set One RPD No. 6; and (3) Defendant Ruben has waived any privilege related to any communication he had with Pastor on January 10, 2024.

Set One, Special Interrogatories Numbers 8, subdivision (d), and 10:

Defendant Ruben failed to adequately respond to Plaintiff's Set One Special Interrogatories (Set One SROGs) Nos 8, subdivision (d), and 10. Pursuant to the Court's order, Set One SROG No. 8, subdivision (d), Defendant Ruben was required to indicate whether he believed as true each statement he made about Plaintiff to law enforcement at the time the statements were made. As to SROG No. 10, the Court's order required Defendant Ruben to describe each communication he had with the person referred to as "Pastor" regarding Plaintiff on January 10, 2024, including (a) the date; (b) the time; (c) the method of communication; and (d) whether Defendant Ruben believed the statement was true when he made it. The Court also ordered Defendant Ruben to provide information to support the claimed privilege. Defendant failed to comply with the Court's order.

Accordingly, the following issue and evidentiary sanctions are ordered: (1) Defendant Ruben is barred from providing testimony, witnesses, or documentary evidence regarding the topics or information included in Set One SROG No. 8, subdivision (d) regarding whether he believed as true when made, the statements he made to law enforcement; (2) Defendant Ruben is barred from providing testimony, witnesses, or documentary evidence regarding the topics or information included in Set One SROG No. 10, and any communication with the Pastor; and (3) Defendant Ruben has waived any privilege related to any communication he had with Pastor on January 10, 2024.

Set Two, Special Interrogatories Numbers 20 Through 23:

Defendant Ruben failed to adequately respond to Set Two's Special Interrogatories (Set Two SROGs) Nos. 20 through 23.

Set Two SROG No. 20 required Defendant Ruben to explain the specific event(s) and context leading to his text messages to Plaintiff on or about September 29, 2023, 11:02 p.m., that is depicted in FAC Exhibit 3, where Defendant Ruben claimed in his Amended Response to

Special Interrogatory No. 13 “Responding Party would therefore have meant “hurt your feelings;”

Set Two SROG No. 21 required Defendant Ruben to state in detail all facts, reasons, and explanation for his October 3, 2023 iMessage to Plaintiff, “I’m covering all your cost,” including what costs he was referring to approximately a week after the DMV payment, and reconcile that statement with his discovery responses asserting that the DMV payment was only “considered;”

Set Two SROG No. 22 required Defendant Ruben to state all facts supporting his contention that Plaintiff’s September 25, 2023 iMessage to him, which stated in substance: “Ask your lawyer how a 10% minority sweat equity deal with a 100% American could harm visa status in any scope whereby there’s no case law, nor code, nor anything that would moronically forbid investing with Americans further than initial investment visa requirements where still meeting all employee requirements,” did not reflect a moot issue, given that Defendant Ruben subsequently texted Plaintiff on October 3, 2023: “when you get your 10% of the company pay;” and

Set Two SROG No. 23 required Defendant Ruben to reconcile his discovery responses stating security camera videos were ‘recorded over’ with Defendant Ruben’s June 23, 2025 email stating ‘We have full video evidence of everything . . . That camera saw it all.’”

Pursuant to the Court’s order, Defendant Ruben was to provide further responses to these SROGs and he has failed to do so. Accordingly, the following issue and evidentiary sanctions are ordered: (1) Defendant Ruben is precluded from presenting testimony, witnesses, or documentary evidence regarding the September 25, 29, and October 3, 2023 text and iMessage’s; and (2) regarding SROG No. 23, Defendant Ruben is further precluded from presenting testimony, witnesses, or documentary evidence addressing or regarding the alleged discrepancies.

Set One, Request for Production:

Defendant Ruben’s September 18, 2025, production of documents 1 through 131 was not signed or verified. Defendant Ruben has not corrected this failure in violation of the Court’s order. Accordingly, Defendant Ruben is precluded from: (1) introducing any and all documents 1 through 131 into evidence; and (2) presenting testimony, witnesses, or documentary evidence regarding any or all of documents 1 through 131.

Terminating Sanctions:

Plaintiff’s request for terminating sanctions is DENIED. Accordingly, Plaintiff’s Request to Strike Ruben’s Answer and Cross-Complaint is DENIED.

Plaintiff’s Motion against Lars Lackas

Plaintiff’s Motion for Issue, Evidentiary, and/ or Terminating Sanctions for Defendant Lars Andre Lackas (Defendant Lackas) Willful Failure to Comply with Court’s April 22, 2026 and

July 28, 2026 (Court's order) Discovery Orders is GRANTED as to Issue and Evidentiary Sanctions and DENIED as to terminating sanctions as follows:

Set Three, Special Interrogatories Numbers 39 Through 42:

Defendant failed to respond to subparts (b) and (c) of Plaintiff's Set Three Special Interrogatories (Set Three SROGs) Numbers 39 through 42 which asked Defendant Lackas to provide all documents supporting, and to identify all persons with knowledge of facts supporting, his First through Fourth Affirmative Defenses pursuant to this Court's orders of April 22, 2026 and July 28, 2026. Accordingly, Defendant Lackas is precluded from offering testimony, documentary, or other evidence in support of or regarding his First through Fourth Affirmative Defenses individually or collectively.

Set Three, Special Interrogatories Numbers 43 Through 51:

Defendant Lackas provided incomplete responses Set Three SROGs Numbers 43 through 51 which asked Defendant Lackas to provide all documents supporting, and to identify all persons with knowledge of facts supporting, his Fifth through Thirteenth Affirmative Defenses. Defendant Lackas's responses to these SROGs constitute legal conclusions and were nonresponsive to subparts (b) and (c). The Court ordered him to provide further responses pursuant to this Court's orders of April 22, 2026 and July 28, 2026, and he has failed to do so. Accordingly, Defendant Lackas is precluded from offering testimony, documentary, or other evidence in support of or regarding his Fifth through Thirteenth Affirmative Defenses individually or collectively.

Set Three, Special Interrogatories Numbers 52, 53, 56 and 57:

Defendant Lackas failed to adequately or meaningfully respond to Set Three SROGs Numbers 52, 53, 56, and 57. These SROGs ask Defendant Lackas about his Fourteenth Affirmative Defense; his general denial that Plaintiff has been damaged; regarding material allegations he denies in the Second Amended Complaint (SAC); and regarding any third party may indemnify or share liability for any alleged damages sustained by Plaintiff. Here, again, Defendant Lackas failed to comply with this Court's order requiring further responses. Accordingly, Defendant Lackas is precluded from offering testimony, documentary, or other evidence in support of or regarding the following: his Fourteenth Affirmative Defense; his claim that Plaintiff has not been damaged in any amount; regarding or refuting the allegations in the SAC; and regarding any claim, assertion, or belief that any third party individual or business entity may share any liability or indemnify Defendant for any damages alleged by Plaintiff.

Set Three, Special Interrogatories Number 59:

Defendant Lackas failed to adequately or meaningfully respond to Set Three SROGs Number 59 which asks Defendant Lackas about the following: an individual named Luis's (or Louis) involvement with or connection to Berlins Food Inc or Twisted Meats between August and October 2023; Defendant Matthias' sworn statement about potential shared employees between the two restaurants; and regarding employees generally who performed work for either Berlins

Food Inc or Twisted Meats. Defendant Lackas was ordered to provide further responses which he has not done. Accordingly, Defendant Lackas is precluded from offering testimony, documentary, or other evidence in support of or regarding the following: (a) whether an individual named Luis or Louis who worked at Berlin Foods also worked at Twisted Meats between August and October 2023; (b) the nature and frequency of Luis's (or Louis's) work at Twisted Meats; (c) that Luis or Louis worked or did not work at Twisted Meats; (d) Defendant Matthias' sworn statement about potential shared employees between the two restaurants; and (e) regarding employees generally who performed work for either Berlins Food Inc or Twisted Meats.

Set Three, Special Interrogatories Number 60:

Defendant Lackas failed to adequately or meaningfully respond to Set Three SROGs Number 60 which asks Defendant Lackas about all food vendors and suppliers that provide ingredients to Twisted Meats. He was ordered to provide a further response to this interrogatory and has failed to do so. Accordingly, Defendant Lackas is precluded from offering testimony, documentary, or other evidence in support of or regarding the following: (a) the supplier's name and contact information; (b) what products each supplier provides; (c) whether Berlins Food Inc. uses any of the same suppliers; and (d) whether he is aware if Matthias Classes coordinates, recommends, or negotiates with any suppliers on behalf of Twisted Meats.

Terminating Sanctions:

Plaintiff's request for terminating sanctions is DENIED. Accordingly, Plaintiff's Request to Strike Lackas's Answer and Cross-Complaint is DENIED.